

Hasim Ikbal Faridi v. State of U.P.

Allahabad High Court · Division Bench · 5 July 2022 · WRIT - C No. - 16602 of 2022 · **Writ disposed; liberty to file Para 6.8 objection; coercive recovery stayed eight weeks.**

HEADNOTE

A writ seeking to quash a PuVVNL recovery citation of Rs 3,26,251 for alleged theft of electricity was disposed without examining merits. The consumer was given liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided after hearing within the next four weeks. Coercive action on the citation was stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

The petitioner challenged a recovery citation dated 14 September 2021 issued by the Executive Engineer, Electricity Distribution Division, Machhlishahar, Purvanchal Vidyut Vitran Nigam Ltd., Jaunpur, demanding Rs 3,26,251 for alleged theft of electricity, and also sought a mandamus to decide his representation dated 23/24 May 2022. Counsel for the distribution company stated on instructions that an objection to the demand could be filed and would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

pending objection to assessment with stay

HOLDING

Without expressing any opinion on merits, the Court disposed of the writ by granting liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer within four weeks. If so filed, the objection is to be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing. Coercive action on the impugned theft recovery citation is stayed for eight weeks or till disposal of the objection, whichever is earlier. ¶ 4-5

FLAG The citation is for alleged theft of electricity; the Court nonetheless directed the objection under Para 6.8.

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The theft recovery writ was disposed by directing a time-bound Para 6.8 objection after hearing, with coercive recovery stayed for eight weeks or until that disposal. ¶ 4-5

pending-objection-to-theft-assessment-6.8 Challenge to a PuVVNL theft recovery citation was relegated to a Para 6.8 objection before the assessing officer, without a merits decision on the demand. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 14.9.2021 FOR ALLEGED THEFT OF ELECTRICITY

The Court expressly declined to express any opinion on merits. ¶ 4